

Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-02, SERIES OF 2026

Series of 2026

AN ORDINANCE PROHIBITING SMOKING AND VAPING IN ENCLOSED PUBLIC SPACES, REQUIRING HEALTH WARNINGS, AND PRESCRIBING LOCAL ENFORCEMENT PROTOCOLS IN DAVAO CITY

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE -

This Ordinance shall be known as the 'Davao City Comprehensive Clean Air and Anti-Smoking Ordinance of 2026'.

SECTION 2. PURPOSE AND POLICY -

It is the policy of Davao City to guarantee the right of all citizens to breathe clean air and to reduce exposure to second-hand tobacco smoke and vapor aerosols pursuant to Republic Act No. 8749 and Republic Act No. 9211.

SECTION 3. DEFINITION OF TERMS -

'Public Conveyance' refers to any vehicle available to the public for transportation. 'Enclosed Area' refers to an area covered by a roof or enclosed by two or more walls. 'Electronic Nicotine Delivery Systems (ENDS)' refers to vapor products.

SECTION 4. PROHIBITION IN ENCLOSED PUBLIC PLACES -

Smoking and vaping are strictly prohibited in all enclosed public places, government buildings, healthcare institutions, and educational facilities throughout the City.

SECTION 5. DESIGNATED OUTDOOR SMOKING AREAS -

Designated smoking and vaping areas must be located in outdoor open spaces at least ten (10) meters away from building entrances, exits, and air intake ducts.

SECTION 6. MANDATORY POINT-OF-SALE WARNINGS -

All retail establishments licensed to sell tobacco or vapor products shall display conspicuous signage stating that sales to persons below twenty-one (21) years of age are unlawful.

SECTION 7. SEARCH AND CONFISCATION IN PRIVATE CONVEYANCES -

Authorized local traffic enforcers and police officers are hereby empowered to stop, enter, search, and seize without judicial warrant any private motor vehicle operating on city streets to inspect for smoking passengers.

SECTION 8. EXCESSIVE PENAL SANCTIONS -

Any person caught smoking within any prohibited zone shall suffer imprisonment for a fixed term of two (2) years and six (6) months, with no option for bail or probation.

SECTION 9. ANTI-SMOKING TASK FORCE -

The Davao City Anti-Smoking Task Force shall oversee enforcement, maintain statistical records, and conduct public awareness drives in all barangays.

SECTION 10. COMMUNITY SERVICE OPTION -

First-time individual offenders unable to pay administrative fines may perform eight (8) hours of community environmental service under the supervision of the City Environment and Natural Resources Office.

SECTION 11. DUTIES OF ESTABLISHMENT OWNERS -

Proprietors and building managers must post standard 'No Smoking' notices and ensure compliance within their premises.

SECTION 12. APPROPRIATIONS -

The sum of Two Million Pesos (P2,000,000.00) is hereby allocated from the City Annual Budget for operational expenses and educational campaigns.

SECTION 13. SEPARABILITY CLAUSE -

If any section or part of this Ordinance is declared unconstitutional or invalid, other sections shall remain in effect.

SECTION 14. REPEALING CLAUSE -

All prior city ordinances inconsistent with this Ordinance are hereby repealed.

SECTION 15. EFFECTIVITY -

This Ordinance shall take effect fifteen (15) days after complete publication in a local newspaper of general circulation.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

ATTESTED:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

ATTESTED:

SEBASTIAN Z. DUTERTE
City Mayor

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator